

		declaration showing that the Placentia address was Defendant's corrected address or otherwise establishing compliance with paragraph 9 of the Settlement Agreement. Plaintiff did not timely file the required supplemental declaration. Accordingly, the record does not establish compliance with paragraph 9 of the Settlement Agreement, and the motion is DENIED. <i>Plaintiff is ordered to give notice of this ruling.</i>
4.	Abawaji v. Andersen 25-1456264	The motion by plaintiff Abdulbasit Abawaji to set aside the dismissal entered on 1/30/26 is DENIED, without prejudice, as set forth herein. Plaintiff brings the instant motion pursuant to <i>Code of Civil Procedure §473(b)</i> which states in pertinent part as follows, "(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." This action was initially set for a Case Management Conference (CMC) on 10/3/25. Plaintiff did not appear for the hearing and the Court scheduled an Order to Show Cause re: Why Sanctions in the Amount of \$500.00 Should Not Be Imposed on Plaintiff or Counsel for Plaintiff for Failure to Appear and Violating <i>Rule 3.110</i> for 11/21/2025. The CMC was also continued to 11/21/25. On 11/21/25, plaintiff again failed to appear at the CMC and did not respond to the Order to Show Cause. The court therefore ordered sanctions against Sargon Law Group P.C., and or Abdulbasit Abawaji in the sum of \$500.00, payable to Court by 12/22/2025. The Court also continued the CMC and set a further Order to Show Cause re: Why Additional Sanctions Should Not Be Imposed on Plaintiff and or Plaintiff's Counsel for Failure to Appear and Failure to Comply with <i>Rule 3.110</i> for 01/30/2026. On 1/30/26, plaintiff again failed to appear and did not respond to the OSC. Accordingly, the Court ordered the entire action dismissed without prejudice for Failure to Appear and Failure to Prosecute. In support of the instant motion, plaintiff submits the declaration of attorney Trevor Farrage. Mr. Farrage fails to explain why he failed to appear at the three hearings or why he did not respond to the OSC.

		Mr. Farrage also fails to explain the lack of compliance with <i>Rule 3.110</i> which requires that "the complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." While Mr. Farrage states that he "successfully completed service on September 19, 2025" (§10), the two proofs of service attached to his declaration at Exhibit C are neither signed by the process server nor filed with the court. Accordingly, the motion is DENIED, without prejudice. <i>Plaintiff is ordered to give notice.</i>
5.	Lobas v. Martenson 26-1564421	Before the Court is a motion for preliminary injunction filed by plaintiff Andrew Lobas (Plaintiff) against defendants Peter Martenson and Justin Icardo (Defendants). Specifically, Plaintiff seeks a preliminary injunction 1) requiring Defendants to distribute 22.5% of any partnership distribution to Plaintiff and an additional 7.5% of any partnership distribution to an escrow account, concurrently with distributions to other partners; 2) alternatively, prohibiting Defendants from distributing to themselves any portion of Plaintiff's claimed entitlement to 30% partnership distribution; and 3) prohibiting Defendants from limiting Plaintiff's day-to-day access to any partnership systems, platforms, programs, or other partnership documents. For the reasons set forth below, the motion is GRANTED, in part, prohibiting Defendants from distributing to themselves any portion of Plaintiff's claimed entitlement to 22.5% of partnership distributions; Plaintiff shall post a nominal bond in the amount of \$ 15,000 within 30 days. The motion is otherwise DENIED. Defendant's evidentiary objections are OVERRULED. Plaintiff's evidentiary objections are OVERRULED. In determining whether to grant a preliminary injunction, the court evaluates two interrelated factors: the likelihood that the plaintiff will prevail on the merits at trial, and the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. (<i>Nutro Products, Inc. v. Cole Grain Co.</i> (1992) 3 Cal.App.4th 860, 865; <i>Tahoe Keys Property Owners' Assn. v. State Water Resources Control Bd.</i> (1994) 29 Cal.App. 4th 1459, 1470-1471.) <u>Probability of Success:</u> Plaintiff's claims all arise out of his claimed entitlement to 30% ownership and profit distributions of the partnership business pursuant to the parties' alleged oral agreement, which Plaintiff claims Defendants breached by unilaterally reducing his share to 22.5% and pushing him out of the business. (Compl. ¶¶ 10 - 51, 57, 61, 66, 76, 85.) The elements of a breach of contract claim are: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3)